Ankur Gupta vs The Union Of India & Ors on 8 November, 2024

Author: Manmohan

Bench: Tushar Rao Gedela, Manmohan

$~27
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(CRL) 1793/2020
ANKUR GUPTA

THE UNION OF INDIA & ORS
Through: Mr. Ravi Pr
Ali Khan,
Mr. Aseem
Pratishth
Raman, Ad
Departmen
Mr. Anupa
with Mr.
Harpreet
Sharma, M
Syamantak
CBI.
Mr. Saura
with Mr.
for R-10.
CORAM:
HON'BLE THE CHIEF JUSTICE
HON'BLE MR. JUSTICE TUSHAR RAO GED
ORDER

% 08.11.2024

1. Present application has been filed on behalf of the applicant/petitioner seeking a direction to the Principal District & Session Judge-cum-Special Judge, PC Act CBI, Rouse Avenue, District Courts to consider the application for additional documents filed by the applicant/petitioner in Bail Application No. 217/2024.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/11/2024 at 22:12:15

2. Learned counsel for the applicant/petitioner states that the present PIL was disposed of vide order dated 16th January 2023. He states that in terms of the said order dated 16th January 2023,

the applicant/petitioner had presented evidence to the Enforcement Directorate against the private respondents therein. He states that on 4th January 2024, one of the accused Praveen Kumar Gupta @ Praveen Gupta filed anticipatory bail application before the learned Principal District & Sessions Judge, Rouse Avenue Court, Delhi, being application No. 217/2024.

3. He states that the applicant/petitioner filed an application for additional documents, which has been dismissed by the learned Principal District & Sessions Judge vide order dated 4th November 2024 on the ground that the petitioner has no locus standi to file an application in bail proceedings. He states that the additional documents are important evidence which shows the direct and incriminating role of the accused in bank fraud and money laundering.

4. Learned counsel for ED and for the private respondents seriously object to the conduct of the applicant/petitioner. They state that the present application has been filed only to extort money and emphasize that the applicant/petitioner has no locus standi and has been tweeting on a sub judice matter. Learned counsel for ED emphasizes that he has been repeatedly publically advised by the applicant/petitioner as what to argue and what not to argue in the Court.

5. This Court is of the view that the conduct of the applicant/petitioner is reprehensible as he is acting contrary to the judgment passed by the learned predecessor Division Bench in the present case. This Court is further of the view that the learned Principal District & Sessions Judge has rightly held This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/11/2024 at 22:12:15 that the applicant/petitioner has no locus standi to file the application. In fact, in the order dated 16th January 2023 passed by the learned predecessor Division Bench, this Court has observed that the petitioner is at liberty to approach the authorities to investigate and point out specific transactions. The said order did not grant liberty to intervene beyond what is being stated in the order dated 16th January 2023. Therefore, the petitioner cannot become a party to the Court proceedings.

6. Further, as noted in the petitioner's own application, the petitioner has already supplied all documents to the Investigating Officer. Therefore, the role of the petitioner is over. As noted in order dated 4th November 2023, the ED is opposing the bail and therefore there is no requirement for the petitioner's assistance or advice.

7. Accordingly, the present application, being bereft of merits and contrary to law is dismissed with cost of Rs.10,000/- to be paid to Delhi High Court Legal Services Committee within four weeks.

MANMOHAN, CJ TUSHAR RAO GEDELA, J NOVEMBER 8, 2024 yrj This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/11/2024 at 22:12:15